Sinha, as a high court judge. Kabir, however, denied his involvement in either case—the appointment of his sister and the rejection of Bhattacharya's elevation.

Former Supreme Court judge Madan Lokur, who was part of the bench striking down the NJAC, though advises caution before running down the collegium system. "It's better than the pre-1990s system. It is necessary to first understand how the collegium system functions and the role of the state government and central government in the appointment process. Only then can improvements be made, not only at the level of the Supreme Court, but also at the levels of the state government and Centre. It requires detailed discussions," he says. It's a different matter that discussion and dialogue between the executive and the judiciary have been replaced by public digs at each other.



"It was the conclusion of the five judges that the collegium system is the ideal one and that is the system we must follow...it's perfect the way it stands today"

– U.U. LALIT
Former Chief Justice of India

WHAT ARE THE ALTERNATIVES?

In 2014, Parliament amended the Constitution and passed a legislation to overhaul the judicial appointment process. It set up the NJAC, comprising the Chief Justice of India, the two seniormost judges of the Supreme Court after the CJI, the Union law minister and two eminent persons to be selected by a committee comprising the prime minister and the leader of the opposition in the Lok Sabha. At least one eminent person would be a member of the SC/ ST/ OBC/ religious minorities or a woman. If two members of the commission voted against the appointment of a person, he or she would not be appointed.

In 2015, the Supreme Court struck down the amendment for violating the basic structure of the Constitution, on the ground that the new procedure contained the possibility of political influence, which would impede judicial independence. Since the latter is part of the unamendable basic structure of the Constitution, the amendment stood invalid. Supreme Court lawyer and now King's Counsel Harish Salve, a strong critic of the collegium, finds this judgement flawed. He even bats for executive intervention in appointment. "Some of the finest judges in India came from the system where the executive appointed the judges. It fell to disrepair when the executive breached the line," he says.

If sources are to be believed, the Union government has been working on a new version of the NJAC with adequate immunity against an adverse ruling by the apex court. The recent statements by the Union law minister are actually part of a larger plan to create a public narrative against the collegium system. Experts, though, suggest an alternative that can earn the trust of all the stakeholders. "The Constitution favours a participatory and consultative process in judicial appointments. Let us evolve a process in which everyone can repose trust without any reservations. Neither total domination of the government nor its total exclusion would be constitutionally permissible," says Mustafa.

While both the government and the judiciary may be justified in their arguments, the debate must move on from deciding who has the right to appoint judges to finding a more effective and transparent process for their selection. ■

